

If there are other beneficiaries to the Borjon Family Trust DTD January 19, 2029, Defendants are unable to appear without counsel. If there are no other beneficiaries, the matter can proceed. Prior to proceeding with hearing on the motion, the Court intends to seek clarification from Defendants regarding whether there are any other beneficiaries to the trust. The Court will only proceed with the following tentative ruling if Defendants are able to proceed without counsel.

Request for Judicial Notice. Plaintiffs request the Court take judicial notice of four separate Grant Deeds provided at Exhibits 1-4. Defendants did not object. The request is granted pursuant to Evid. Code §§ 452(c) and 453.

Merits. A motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. CCP § 437c(c). A plaintiff has met his burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action. Once the plaintiff has met that burden, the burden shifts to the defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. CCP § 437c(p)(1).

The Complaint alleges a single cause of action seeking partition by sale of the real property located at 42324 Blue Heron Circle in Old Station, California. The property is a single family home and Plaintiffs each own 1/3 undivided interest and Defendants own the remaining 1/3. Therefore, the parties collectively own 100% of the interest in the property. Ownership is as tenants in common. Civ. Code § 686. There is no dispute as to the interests of the parties. Plaintiffs have presented evidence that they are entitled to partition as there has been no valid waiver. Therefore, Plaintiffs have met their burden. Defendants failed to raise any triable issues of material fact.

“If the court finds that the plaintiff is entitled to partition, it shall make an interlocutory judgment that determines the interests of the parties in the property and orders the partition of the property and, unless it is to be later determined, the manner of partition.” CCP § 872.720. The Court notes that the property is a single family home, therefore, partition in kind is not practicable and the Court will order partition by sale. The Court further notes that The Partition of Real Property Act applies as this action was filed on July 16, 2025.

Plaintiffs’ Motion for Summary Judgment is **GRANTED**. The Court has reviewed the proposed Interlocutory Judgment and Order submitted by Plaintiffs and notes that there is significant extraneous information regarding the next steps. While this is helpful, it is not properly part of the Order at this juncture and the Court will modify the proposed Order. The Court vacates the June 16, 2026 trial date and will place this matter on calendar on **Monday, May 18, 2026 at 9:00 a.m. in Department 63** for status of determination of fair market value.

9:00 a.m. – Review Hearings

ABBEY, ET AL. VS. ROSEBURG FOREST PRODUCTS, CO

CASE NUMBER: 25CV-0208406

This matter is on calendar for review regarding status of expedited petitions. The Court notes that the expedited petition for minor Konstance Ripley was approved on April 14, 2026. The matter is continued to **Monday, June 29, 2026 at 9:00 a.m. in Department 63** for confirmation of deposit and status of dismissal. **No appearance is necessary on today’s calendar.**

BURROWS VS. GARRIGUS, ET AL.

CASE NUMBER: 24CV-0205757

This matter is on calendar for status of appraisal. Plaintiff has not submitted a motion or ex parte application to approve an appraiser. The Court notes that Plaintiff notice a Motion for Award of Attorney Fees and Costs for May 4, 2026. **An appearance is necessary on today’s calendar.**